

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK**

-----X
EDGARDO LOPEZ,

Plaintiff,

-against-

**CITY OF NEW YORK and NEW YORK CITY POLICE
DEPARTMENT,**

Defendants.

-----X
To the above named Defendant(s):

Index No.:

Date Filed: 7/2/2014

**Plaintiff designates New
York County as the Place
For Trial.**

**The basis of venue is
Place of Occurrence**

SUMMONS

**Plaintiff resides at
215 East 102nd Street
New York, NY 10029**

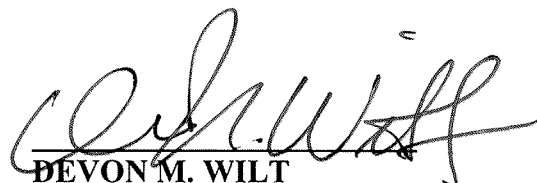
YOU ARE HEREBY SUMMONED, to answer the complaint in this action and to serve copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff(s) Attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is completed if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

**DATED: New York, New York
July 2, 2014**

Defendant(s)' Address:

**THE CITY OF NEW YORK:
100 Church St., New York, NY 10007**

**NYC POLICE DEPARTMENT
1 Police Plaza, New York, NY 10038**



**DEVON M. WILT
Attorney for Plaintiff
7 Dey Street, Suite 1401
New York, New York 10007
(212) 406 - 9200**

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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EDGARDO LOPEZ,

Index No.:

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Plaintiff,

-against-

COMPLAINT

CITY OF NEW YORK and the NEW YORK CITY
POLICE DEPARTMENT,

Defendants.
-----X

Plaintiff, by his attorney, *DEVON M. WILT*, complaining of the defendants, respectfully
alleges, upon information and belief, as follows:

PARTIES

1. Plaintiff *EDGARDO LOPEZ (LOPEZ)*, was and still is a resident of the County,
City and State of New York.

2. At all the times herein mentioned, defendant **CITY OF NEW YORK (CITY)**
was and still is a domestic municipal corporation duly organized and existing under and by virtue
of the laws of the City and State of New York.

3. At all the times herein mentioned, defendant **NEW YORK CITY POLICE
DEPARTMENT (NYPD)**, was and still is a municipal agency duly organized and existing
under and by virtue of the laws of the City and State of New York.

4. Defendants *CITY* and *NYPD* employed police officer Norma Ortega, Shield
Number #25560 (**P.O. ORTEGA**).

5. At all times herein mentioned, **P.O. ORTEGA** was employed by the defendants **CITY** and **NYPD**, in the capacity of police officer, and was acting in such capacity as the agent, officer, servant and employee of the defendants, **CITY** and **NYPD**.

6. At all the times herein mentioned, **P.O. ORTEGA** was acting under color of state law and under her authority as a police officer for the defendants, **CITY** and **NYPD**.

CONDITION PRECEDENT

7. The plaintiff duly and timely served a statutory Notice of Claim upon the defendants, **CITY** and **NYPD**.

8. The plaintiff has complied with all the conditions precedent to the institution of this action and has complied with all the provisions of the charter of the City of New York in relation thereto and in particular have duly presented his claims herein to the Comptroller and Corporation Counsel of the City of New York for adjustment, and that more than thirty (30) days have elapsed since the presentation of the Notice Of Claim and that said claim remains unadjusted and the Comptroller of the City of New York has failed and refused to make any adjustment or payment of the same and the plaintiff, prior to the commencement of this action and within ninety (90) days after the injuries hereinafter described were received, duly served his Notice of Claim, and that fifteen (15) months have not elapsed since the accrual of this cause of action against the defendants.

FACTS

9. On September 13, 2013, at or about 5:00 P.M., the plaintiff was visiting a resident who lives in the building located at 310 East 102nd Street in New York County.

10. On September 13, 2013, at or about 5:30 P.M., while the plaintiff was exiting the building located at 310 East 102nd Street in New York County, **P.O. ORTEGA** forcibly stopped plaintiff.

11. **P.O. ORTEGA** did not show any form of identification or arrest warrant to the plaintiff.

12. **P.O. ORTEGA** did not have either probable cause or a warrant to stop plaintiff.

13. **P.O. ORTEGA** searched plaintiff's person and did not find contraband.

14. **P.O. ORTEGA** arrested plaintiff.

15. **P.O. ORTEGA** drove plaintiff to the 23rd Precinct located at 162 East 102nd Street, in the County of New York.

16. **P.O. ORTEGA** never informed plaintiff why he was being arrested.

17. At the 23rd Precinct, plaintiff was photographed, fingerprinted and processed.

18. **P.O. ORTEGA** knew that she did not have just or probable cause to arrest the plaintiff.

19. **P.O. ORTEGA** intentionally detained the plaintiff without cause.

20. Plaintiff was placed in a holding cell at the 23rd Precinct.

21. On September 14, 2013, plaintiff was arraigned in the Criminal Court of the City of New York, County of New York, on Misdemeanor Complaint, Docket No. 2013NY072129.

22. The Misdemeanor Complaint, Docket No. 2013NY072129 charged the plaintiff with the following crimes:

Criminal Trespass In The Second Degree

Criminal Trespass In The Third Degree

23. At Plaintiff's arraignment, he was released on his own recognizance (ROR).

24. On February 18, 2014, the Misdemeanor Complaint, Docket No. 2013NY072129, was Dismissed and Sealed by motion of the District Attorney before Judge R. Straus in Part BTP-1 of the Criminal Court of the City of New York, County of New York.

FIRST CAUSE OF ACTION
(FALSE ARREST AND IMPRISONMENT)

25. Plaintiff repeats and realleges each and every allegation contained in paragraphs numbered “1” through “25” herein, as if the same were set forth herein more fully and at length.

26. The arrest and imprisonment of plaintiff were unwarranted and unjustified under the circumstances then and there existing and was caused solely and wholly by the negligence, carelessness and recklessness of the defendants, **CITY** and **NYPD**, their agents, servants, officers and employees, and was without any fault or want of care on the part of the plaintiff.

27. The acts complained of were done by the defendants **CITY** and **NYPD**, their officers, agents, servants and employees, in the course of their employment and was without cause or provocation; the defendants were further careless and negligent in the manner and method in which they performed their duties; in that **P.O. ORTEGA** acted without cause in arresting, assaulting and imprisoning the plaintiff; in that **P.O. ORTEGA** covered-up her actions and refused to give aid and medical treatment to the plaintiff; in that **P.O. ORTEGA** falsely arrested and imprisoned plaintiff knowing that she had no just or probable cause to do so; in that **P.O. ORTEGA** falsely swore to a Criminal Court Complaint charging plaintiff with ***Criminal Trespass In The Second Degree*** and other related charges when she knew that plaintiff had not committed such crimes; in that **P.O. ORTEGA** acted indiscriminately and in total disregard of the life, limb or safety of the plaintiff; and **P.O. ORTEGA** failed to exercise due care, caution and prudence in the performance of her duties.

28. That by engaging in the foregoing acts, **P.O. ORTEGA** committed under color of state law and under her authority as a police officer for the defendants, **CITY** and **NYPD**, and while acting in the scope of her employment and pursuant to authority vested in her by the defendants, **CITY** and **NYPD**, denied and deprived plaintiff of his rights, privileges and immunities as guaranteed to him by the First, Fourth, Fifth, Sixth, Eighth and Fourteenth Amendments to the United States Constitution, and in fact did so deny and deprive plaintiff of his rights, privileges and immunities.

29. That solely as a result of the negligence, carelessness and recklessness of the defendants **CITY** and **NYPD**, their agents, servants, officers and employees, as aforesaid, the plaintiff suffered humiliation, embarrassment and damage to his character and reputation; the plaintiff was held up to scorn and ridicule; the plaintiff was falsely arrested, assaulted, imprisoned and detained against his will; the plaintiff was caused to appear in the Criminal Court of the City of New York County of New York; he was unable to attend to his usual duties; and he has been psychologically damaged by this occurrence.

30. That by reason of the foregoing, plaintiff has suffered substantial damages.

31. That the amount of damages sought exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

SECOND CAUSE OF ACTION
(ASSAULT)

32. Plaintiff repeats and realleges each and every allegation contained in paragraphs numbered "1" through "25" herein, as if the same were set forth herein more fully and at length.

33. The defendants, **CITY** and **NYPD**, their agents, servants, officers and employees, violated the plaintiff's civil rights as guaranteed to him by the Constitution of the United States

of America and the State of New York by unlawfully arresting, assaulting and imprisoning the plaintiff.

34. That by reason of the foregoing, plaintiff has suffered substantial damages.

35. That the amount of damages sought exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

THIRD CAUSE OF ACTION
(NEGLIGENCE - FAILURE TO TRAIN AND SUPERVISE)

36. Plaintiff repeats and realleges each and every allegation contained in paragraphs numbered "1" through "25" herein, as if the same were set forth herein more fully and at length.

37. The defendants, **CITY** and **NYPD**, by their deliberate acts, gross negligence and reckless conduct failed to adequately train, discipline and supervise **P.O. ORTEGA**, and in their failure to promulgate and put into effect appropriate rules and regulations applicable to the duties, conduct, activities and behavior of their officers, agents, servants and employees, directly caused the harm suffered by plaintiff.

38. The acts of **P.O. ORTEGA** committed under color of state law, deprived the plaintiff of his rights, privileges and immunities as guaranteed to him by the First, Fourth, Sixth, Eighth and Fourteenth Amendments to the United States Constitution.

39. That by reason of the foregoing, the plaintiff has suffered substantial damages.

40. That the amount of damages sought exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

FOURTH CAUSE OF ACTION
(MALICIOUS PROSECUTION)

41. Plaintiff repeats and realleges each and every allegation contained in paragraphs numbered "1" through "25" herein, as if the same were set forth herein more fully and at length.

42. **P.O. ORTEGA** arrested the plaintiff for crimes which she knew or had reason to know the plaintiff had not committed.

43. **P.O. ORTEGA**, falsely sworn to a Criminal Complaint charging the plaintiff with *Criminal Trespass In The Second Degree* and other related charges when she knew that plaintiff had not committed such crimes.

44. **P.O. ORTEGA** initiated and continued the criminal prosecution against the plaintiff for improper purposes.

45. The Criminal Complaint against plaintiff was dismissed by motion of the New York County District Attorney.

46. That defendants, **CITY** and **NYPD**, by their deliberate acts, gross negligence and reckless conduct in failing to adequately train, discipline and supervise **P.O. ORTEGA**, and in their failure to promulgate and put into effect appropriate rules and regulations applicable to the duties, conduct, activities and behavior of their agents, servants and employees, directly caused the harm suffered by plaintiff.

47. That the acts of **P.O. ORTEGA** committed under color of state law, deprived the plaintiff of his rights, privileges and immunities as guaranteed to him by the First, Fourth, Sixth, Eighth and Fourteenth Amendments to the United States Constitution.

48. That by reason of the foregoing, the plaintiff has suffered substantial damages.

49. That the amount of damages sought exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

WHEREFORE, plaintiff demands judgment against each defendant, jointly and severally,
together with the costs and disbursements of this action.

Yours, etc.

A handwritten signature in black ink, appearing to read "Devon M. Wilt", written over a horizontal line.

DEVON M. WILT
Attorney for Plaintiff
7 Dey Street, Suite 1401
New York, New York 10007
(212) 406-9200

Index No.: Year: RJI No.: Hon:

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Plaintiff,

-against-

**CITY OF NEW YORK and NEW YORK CITY
POLICE DEPARTMENT,**

Defendants.

SUMMONS AND COMPLAINT

DEVON M. WILT

Attorney for Plaintiff

Office & Post Office Address, Telephone

7 DEY STREET

NEW YORK, N.Y. 10007

(212) 406-9200

To:

Signature (Rule 130-1.1-a)

Print name beneath

Attorney(s) for

Service of a copy of the within
Dated,

is hereby admitted.

Attorney(s) for

Please take notice

1 NOTICE OF ENTRY

that the within is a (certified) true copy of a
duly entered in the office of the clerk of the within names court on

1 NOTICE OF SETTLEMENT

that an order of which the within is a true copy will be presented for settlement to the HON.
one of the judges of the within names court, at

on

To:

Yours, etc.

Attorney(s) for:

DEVON M. WILT

Attorney for Plaintiff

Office & Post Office Address

7 DEY STREET

NEW YORK, NY 10007